

****21.10.2021****

****Sanction for Violation of GDPR****

The National Supervisory Authority completed, on September 23, 2021, an investigation into the operator Glove Technology SRL, following which it was found that the provisions of Article 5 paragraph (1) letter a) in relation to Article 6 paragraph (1) of the General Data Protection Regulation were violated, with the operator being sanctioned with a fine of 24,745.00 lei (equivalent to 5,000 EURO). The sanction was imposed because it was found that the operator processed personal data of its employees using an audio-video system (image and voice), without demonstrating compliance with the legal grounds provided by Article 6 paragraph (1) of the GDPR, namely obtaining the consent of the data subjects, fulfilling a legal obligation, or the legitimate interest prevailing over the interests, rights, and freedoms of the data subjects.

It was also found that the operator took the measure of monitoring employees at the workplace through audio-video surveillance systems without respecting the first principle established by Article 5 paragraph (1) letter a) of the GDPR, according to which the operator has the obligation to process data legally, fairly, and transparently concerning the data subject.

Additionally, based on Article 58 paragraph (2) letter d) of the GDPR, a corrective measure was imposed on the operator to ensure compliance with the processing operations carried out using audio-video systems, as well as to cease any operation or set of operations of processing personal data carried out through audio-video systems and to delete the personal data record established as a result of using such systems.

The investigation was initiated following a complaint, which reported that the operator Glove Technology SRL has installed some audio-video surveillance cameras inside the offices, for the direct monitoring of employees at the workplace where they carry out their activities and for recording discussions among them, with the purpose of using them later against those employees.

In this context, we emphasize that, to the extent that an employer uses monitoring systems through video surveillance means at the workplace, the processing of personal data of employees for the purpose of achieving the legitimate interests of the employer (Article 6 paragraph 1 letter f) of the GDPR) is carried out in compliance with the provisions of Article 5 of Law no. 190/2018, which establishes, as a primary condition, that the legitimate interests pursued by the employer must be thoroughly justified and must prevail over the interests or rights and freedoms of the data subjects.

****Legal and Communication Department****

****N.S.A.P.D.C.P.****